

countries where they are not legal. Russia, too, is a particular opponent of gay rights, despite decriminalizing homosexual acts in 1993.

North America

The subject of gay rights also proved deeply divisive in the United States. In Canada, homosexuality was decriminalized in 1969 and same-sex marriage made legal in 2005, but in the US, the issue exposed a cultural rift. The country became both a hotbed of gay rights activism and a bastion of traditional values, with some determined to outlaw homosexuality as an offense against God and America itself. In 1962, homosexuality—defined by law as sodomy—was illegal in every US state except Illinois. By 2003, it was still illegal in 13 states; in Idaho, it carried a sentence of life imprisonment. American gay rights campaigners, whether in California or New York, faced an unforgiving Middle America.

Legal precedents

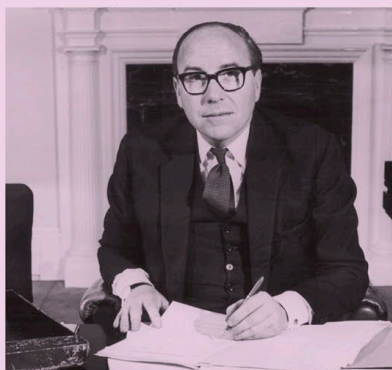
Same-sex marriage was a peculiarly unstable legal minefield in the US. As early as 1971, the US Supreme Court had refused to rule on the



matter, dismissing it “for want of a substantial federal question.” A series of later cases were no more illuminating, but a decisive moment appeared to have been reached in 1996, with the passing of the Defense of Marriage Act (DOMA). This was the product of a series of state-initiated actions that collectively made clear that any US state had the right “not to recognize same-sex marriages.” Even as he signed it into law, US president Bill Clinton described the DOMA as “divisive and unnecessary.”

The first same-sex couple to marry legally in the US, Marcia Kadish (left) and Tanya McCloskey exchanged rings at the city hall in Cambridge, Massachusetts, on May 17, 2004.

Clarity came with two further Supreme Court rulings. In 2013, in *United States v. Windsor*, the Court decreed that much of the DOMA was unconstitutional. Those states that had already declared same-sex marriage to be legal (Massachusetts was the first) were joined by a flood of others. In 2015, in *Obergefell v.*



Roy Jenkins, the British home secretary in 1967, championed the Sexual Offences Act as part of reforms of what he called “civilized society.”

The Sexual Offences Act

In 1885, the UK Parliament passed the Criminal Law Amendment Act, which made all homosexual acts between men illegal. But by the mid-1950s, despite continued social prejudice against homosexuality, there was increasing recognition that its criminalization was an anachronism. The Wolfenden Report of 1957, commissioned by the government, stated that what consenting adults did in private was “not the law’s business.” But the report was sidelined by the government, which feared a public

outcry. It was not until the mid-1960s that a cross-party initiative was launched to decriminalize homosexuality.

In 1967, the reform became law with the passing of the Sexual Offences Act. Tellingly, however, the homosexual age of consent was set at 21: only in 2000 was it lowered to 16, the same as for heterosexual consent. The Act applied only to England and Wales. Homosexuality finally became legal in Scotland in 1981, and in Northern Ireland in 1982.